

PROMISING RETURN PRACTICES

RETURN GREECE

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Name of practice	Counter-practices of documentation and contestation against forced returns	
Dates	2023	
Target group	Future returnees	
Geographic Scope	Country	Greece
	Regions	Europe
	Sub Region	Balkans
Actor(s)	Greek National Commission for Human Rights Greek Council for Refugees	
Return Stages	Return	
Challenge addressed	Monitoring and Evaluation Voluntariness and Coercion Legal and Procedural	
Principles referred (implicit or explicit)	Non-refoulment Do no-harm	

SUMMARY

The Recording Mechanism of Informal Forced Returns (pushbacks) is an independent network formed under the Greek National Commission for Human Rights (GNCHR). The Mechanism constitutes a synergy between the GNCHR and twelve civil society organisations active in providing legal, medical, psychosocial, and other services to third-country nationals, with the United Nations High Commissioner for Refugees (UNHCR) contributing expertise and technical support as a cooperating agency. The Recording Mechanism monitors and reports incidents of informal forced returns from Greece to other countries, to promote compliance with the principle of non-refoulement and safeguard procedural guarantees.

The second counter-practice against pushbacks, the submission of applications for interim measures to the European Court of Human Rights (ECtHR) by legal NGOs, has emerged as a promising strategy to protect migrants at risk. Interim measures, or 'Rule 39 orders,' are urgent orders issued by the ECtHR under 'exceptional circumstances', when applicants face an imminent threat of serious and irreparable harm. Once indicated, these measures are legally binding on the relevant state, which is obliged to comply.

BENEFITS/IMPACTS AND SHORTCOMINGS

By adopting a standardized, transparent, and scientific methodology, the Recording Mechanism enhances the credibility of reported incidents. It is recognized as a promising practice due to the lack of any other official and effective system for recording pushbacks. Additionally, it establishes a vital network that connects previously fragmented efforts by various organizations that had operated independently.

According to the Greek Council for Refugees, between March 2022 and June 2025, the organization represented 1,189 refugees from different countries before the European Court of Human Rights (ECtHR). They submitted 111 applications for interim measures to secure humanitarian assistance and access to the asylum process. The Court granted the requested interim measures in all cases, ordering the Greek government not to remove the refugees from the country and, in most cases, to provide them with food, water, and proper medical care.

KEY LESSONS

Coordinated action is needed to document human rights violations. Collaboration among NGOs, advisory bodies, and international organisations is essential to guarantee that abuses are properly recorded and followed up on. Coordination between GNCHR, legal NGOs and other civil society partners has been key to systematically tracking and documenting pushbacks, collecting evidence, and supporting follow-up actions.

Counter-practices are critical even in the face of official denial. Independent monitoring and legal contestation remain crucial tools to uphold human rights when state authorities deny or underreport violations. The Greek experience shows that mechanisms such as recording systems and ECtHR interim measure applications can expose violations, safeguard non-refoulement, and ensure that affected individuals receive basic rights and protection despite systemic obstacles.

RECOMMENDATIONS

Immediately halt pushbacks. States must cease all forced or informal returns to uphold human rights, protect vulnerable populations, and comply with the principle of non-refoulement.

Strengthen coordinated documentation and reporting. Collaboration among international organisations, NGOs, and advisory bodies is essential to systematically record, monitor, and report pushbacks, enabling evidence-based advocacy and legal interventions to protect affected migrants.

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